

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MAY 29, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**SUNNY WORLD FUND LLC v. OWEN, ET AL.
Case No. CU24-03168**

Petition to Vacate Arbitration Award; Petition to Confirm Arbitration Award

TENTATIVE RULING

Plaintiff's petition to vacate the arbitration award is denied. Defendant Silvermark Construction Services, Inc.'s petition to confirm the arbitration award is granted.

The court must confirm an arbitration award as made unless it corrects the award, vacates the award, or dismisses the proceeding. (Code Civ. Proc. § 1286.) Every presumption favors the arbitration award. (*Thibodeau v. Crum* (1992) 4 Cal.App.4th 749, 760.)

An award may be vacated if the arbitrator exceeded his authority or the rights of the complaining party were substantially prejudiced by the arbitrator's refusal to hear material evidence. (Code Civ. Proc. § 1286.2, subds. (a)(4)-(a)(5).) "[A] decision exceeds the arbitrator's powers only if it is so utterly irrational that it amounts to an arbitrary remaking of the contract between the parties." (*Advanced Micro Devices, Inc. v. Intel Corp.* (1994) 9 Cal.4th 362, 377, quoting *S. Cal. Rapid Transit Dist. v. United Transp. Union* (1992) 5 Cal.App.4th 416, 423.) An arbitrator generally has the power to decide any question of contract interpretation, historical fact, or general law necessary to reach a decision. (*Gueyffier v. Ann Summers, Ltd.* (2008) 43 Cal.4th 1179, 1184.) "Arbitrators do not ordinarily exceed their contractually created powers simply by reaching an erroneous conclusion on a contested issue of law or fact, and arbitral awards may not ordinarily be vacated because of such error, for 'the arbitrator's

resolution of these issues is what the parties bargained for in the arbitration agreement.” (*Ibid.*, quoting *Moshonov v. Walsh* (2000) 22 Cal.4th 771, 775-776)

A court must give substantial deference to an arbitrator’s own assessment of his or her contractual authority and must refrain from substituting its judgment for the arbitrator’s in determining the scope of the arbitration. (*Advanced Micro Devices, supra*, 9 Cal.4th at 372-373.) An arbitrator does not exceed his powers by failing to adopt a particular interpretation of the agreement or making a legally incorrect decision, even one that contradicts the parties’ agreement. (*Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 875-876.)

The arbitrator did not exceed his authority in limiting the scope of the arbitration. Regardless of whether the arbitrator erred (factually or legally) in concluding that the parties had stipulated to narrowing the scope of the arbitration, the arbitrator is generally authorized to determine questions of contract interpretation, facts, and applicable law and nothing in the arbitration agreement between the parties limits this authority. Because the arbitrator did not exceed his authority in limiting the scope of the arbitration, the excluded evidence was not material to the controversy before the arbitrator.

Defendant is entitled to interest as of the date of the final award. (*County of Solano v. Lionsgate Corp.* (2005) 126 Cal.App.4th 741, 753.) At ten percent per annum (Civ. Code § 3289(b)), the amount of accrued interest as of the date of the hearing is \$59,741.31.

Defendant is also entitled to attorneys’ fees incurred in postarbitration proceedings, which are to be determined in a subsequent motion presenting evidence of the amount and reasonableness of the fees incurred. (*Carole Ring & Assocs. v. Nicastro* (2001) 87 Cal.App.4th 253, 261.)

PEOPLE OF THE STATE OF CALIFORNIA v. \$10,176.00 U.S. CURRENCY
Case No. CU24-03869

Petitioner’s Motion to Strike Claim

TENTATIVE RULING

Petitioner PEOPLE OF THE STATE OF CALIFORNIA’s motion to strike Claimant REYNA RUEDA CASTANEDA’s claim opposing forfeiture of \$10,176 pursuant to Health and Safety Code section 11488.5 is denied without prejudice. The court instructed Petitioner to file a declaration detailing efforts to reach Claimant but no such declaration is on file. The court notes that the property potentially subject to forfeiture was seized from 127 N. First Street in Dixon, where per Petitioner’s allegations CASTANEDA had her residence and bedroom. Understanding that CASTANEDA listed her address on her claim opposing forfeiture as 127 W. First Street in Dixon, the court requires more

information as to Petitioner's efforts to locate Claimant and inform her of proceedings after finding that one letter to 127 N. First Street was returned as undeliverable

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